HILCHOT PESAH - SHULHAN ARUKH

The Berakhah on Bedikah, Where to Check & the 10 Pieces Minhag

Hilchot Pesah Simanim 432–433

Recap of Previous Class

Siman	Topics Covered
429	Learning Hilchot Pesach 30 days before; month of Nisan; fasting; eulogies; stone settings; ma'ot chittin
430	Shabbat HaGadol — why it's called that; customs
431	Bedikat Chametz — rabbinic mitzvah; Torah only requires bitul; two reasons Chachamim required bedikah (sincerity concern + temptation concern); beginning of the night; precedence over Arvit; candle; restrictions before bedikah

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Siman 432 — The Bracha on Bedikat Chametz (דין ברכת בדיקת חמץ)

Contains 2 Se'ifim

Se'if 1 — The Bracha and Its Wording

Shulchan Aruch: קודם שיתחיל לבדוק יברך אשר קדשנו במצותיו וצונו על ביעור חמץ — Before beginning the search, one recites the bracha: "...Who has sanctified us with His commandments and commanded us **concerning the destruction of chametz** (על ביעור חמץ)."

Why "Al Biur Chametz" and Not "Al Bedikat Chametz"?

- We are about to **search**, not destroy — so why mention destruction?
- **Answer:** The entire purpose of the bedikah is the biur (destruction) the next morning. The search is merely a **hechsher** (preliminary/preparation) for the real mitzvah.
- The Chachamim did not want to establish a bracha on something that is only preparatory — even though bedikat chametz is a mitzvah de-rabbanan in its own right.
- The bracha covers **both** the bedikah being done now **and** the destruction the next morning — it is a continuing bracha.
- **When saying the bracha:** Have in mind both the search you are doing now and the destruction the following morning.

Why Not "Al Bitul Chametz"?

- Bitul (nullification) happens **in the mind** — it is a conscious mental decision.

- You do not say a bracha on something that occurs purely in a person's thoughts.

"Al" (על) vs. "Le-" (ל)

- We say **"al biur"** — not "leva'er chametz."
- **"Le-"** = "to do it now" — but we are not destroying now; that happens tomorrow morning.
- **"Al"** = "concerning" — the destruction is going to happen, and we are beginning the process tonight by searching.
- **Bedi'avad:** If you said "leva'er chametz," you are yotzei, but one should be particular to say "al biur."

The Meaning of "Biur" — Sephardi vs. Ashkenazi

- **Machloket in the Gemara:** Rabbi Yehuda vs. Chachamim.
- **Chachamim (main halacha, accepted by all):** Biur = **destroy** by any means — break into pieces, throw into the sea, crumble, etc.
- **Rabbi Yehuda:** Biur = specifically **burn**.
- **Sephardim** follow the Chachamim: biur means to destroy/get rid of chametz by any method.
- **Ashkenazim** are machmir and prefer burning, but agree that me'ikar hadin any destruction suffices.
- **This year (5785):** Since Erev Pesach falls on Shabbat, you cannot burn chametz on Shabbat. You can burn on Friday morning, but the remaining chametz on Shabbat must be destroyed by other means — relying on the main opinion of the Chachamim.

No Separate Bracha the Next Morning

- Since the bracha said at night covers the biur the next morning, **no new bracha** is said when destroying the chametz.
- If, however, you did the entire bedikah at night **without saying any bracha at all**, then the next morning before the biur you **do say** "al biur chametz."

Speaking During Bedikat Chametz

Shulchan Aruch: ויזהר שלא ידבר בין הברכה לתחילת הבדיקה — One must not speak between the bracha and beginning the search.

Rules on Speech

Timing	Permitted?	Details
Between bracha and beginning to search	**No** — any unrelated speech is a hefsek	Would require repeating the bracha (bracha le-vatalah)
Speech related to the bedikah (e.g., "Where should I begin?" / "Where is the candle?")	**Yes** — this is part of the mitzvah	Not a hefsek
After beginning the search (at least one area checked)	**Me'ikar hadin permitted** — the bracha has "landed" on something	But Maran says it is **tov** (good practice) not to speak unnecessary matters until the entire search is complete, to maintain focus
Urgent matters (e.g., phone call)	**Permitted me'ikar hadin**	But better to avoid if possible
Speech about the bedikah throughout	**Always permitted**	"Has this cupboard been checked?" / "Is this chametz?" — all part of the mitzvah

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Se'if 2 — One Bracha for Multiple Properties

Shulchan Aruch: בברכה אחת יכול לבדוק כמה בתים — With one bracha, a person can check multiple properties.

The Principle

- The mitzvah of bedikat chametz is to check **everywhere in your possession**.
- The bracha covers this entire obligation — even if you have to travel between properties.
- Travelling between homes is **not a hefsek**, because it's all one continuous mitzvah.
- Example: Check your home, then drive to your shop or synagogue — all under one bracha.

Speaking Between Properties

- If you spoke mundane matters while travelling between properties — **you do not need to repeat the bracha**, as long as you already began searching in the first location.
- **If properties are very far apart** (e.g., different countries — theoretical): The poskim advise having in mind that the bracha applies **only to the current property**, then saying a new bracha at the distant property.
- **If properties are nearby** (same neighbourhood): One bracha covers all.

Family Members Splitting Up

Shulchan Aruch: The ba'al habayit (homeowner) can gather his family, say the bracha, and then each person goes to search a different property or a different part of the house.

- The family members hear the bracha and are yotzei through it.
- They act as the ba'al habayit's **agents (shluchim)** — since it is his property, they search on his behalf.

- **This only works** when the properties belong to the ba'al habayit. If children own their own homes, they say their own bracha in their own home.

Potential Problem — Sending an Agent Mid-Search

- If the ba'al habayit began searching alone, said the bracha himself, and then mid-search decides to send his son to continue in another property:
- The ba'al habayit cannot say the bracha again (already said it).
- The son cannot say the bracha (it's not his obligation — only as agent).
- The son didn't hear the original bracha.
- **Solution (bedi'avad):** The son continues without a bracha — it's still one continuous mitzvah.
- **Best practice:** If you plan to split up, gather everyone **before** the bracha so they all hear it.

Who Can Perform Bedikat Chametz?

Person	Can they search?	Notes
Adult man	Yes	Primary obligation
Adult woman	Yes	Me'ikar hadin, fully capable. If living alone — obligated to say bracha and search herself. If married — husband as ba'al habayit says bracha, but she can search as agent
Child (bar/bat mitzvah age)	Yes	Preferred over younger children
Child (below bar/bat mitzvah, age of chinuch)	Yes, me'ikar hadin	Because bedikat chametz is de-rabbanan, a child is believed. Better if over bar mitzvah. Must be reliable and understand what they're doing

Comparison to Tevilat Kelim

- **De'oraita obligations** (e.g., immersing metal utensils): A child under bar/bat mitzvah is **not believed** — an adult must be present or do it.
- **De-rabbanan obligations** (e.g., immersing glass utensils; bedikat chametz): A child **is believed**.

The Minhag of Leaving Pieces of Chametz (Rama)

Rama: נוהגים להניח פתיתי חמץ במקום שימצאם הבודק — It is customary to leave pieces of chametz around the house for the searcher to find, כדי שלא יהיה ברכתו לבטלה — so the bracha won't be in vain (in case no chametz is found).

Key Points

- The pieces are placed where the searcher **will find them** — not hidden in impossible locations. This is not a treasure hunt.

- **Me'ikar hadin, this is unnecessary:** The bracha is on the **searching**, not on finding. Even if nothing is found, the bracha is valid.
- The Rama himself clarifies: ומיהו אם לא נתן לא עכב — "If you didn't do this minhag, it's absolutely fine."

Historical Reception

- **Ra'avad:** Mocked this minhag — called it "מנהג נשים" (a custom of the uneducated/ignorant).
- **Chacham Tzvi:** Called it ridiculous and pointless.
- The poskim generally did not find great significance in it.
- **Modern justification:** It motivates the searcher to look properly — especially relevant nowadays when the house has already been cleaned for weeks and the bedikah night can feel like going through the motions.

The Arizal — Ten Pieces

- There is **no halachic concept** of ten pieces — this is entirely from Kabbalah.
- The **Arizal** established that one should leave **ten pieces**, and Sephardim generally follow this custom.

Critical: Size of the Pieces

- Each piece must be **less than a kezayit** (currently accepted as ~27 grams, though historically likely much less).
- **Why?** If a piece goes missing (child hid it and can't remember where):
- **Less than a kezayit:** No problem — just do bitul and move on.
- **A kezayit or more:** Major problem — you have definite chametz somewhere in the house and must search until it's found.
- **Practical advice:** Make the pieces very small. Have children **write down** the exact location of each piece before beginning. Do not play the "hiding game" without a written record.

Siman 433 — Further Laws of Bedikat Chametz (דיני בדיקת חמץ)

Contains 11 Se'ifim

Overarching Principle

You only need to check in places where it is possible that chametz was brought in during the year. If you are certain chametz never entered a place, it does not need to be checked.

Se'if 1 — Checking with a Candle; Prior Searches

Shulchan Aruch: הבדיקה צריך שתהא לאור הנר ולא לאור הלבנה — The search must be done by candlelight, not moonlight.

Prior Searches Are Valid (Mishnah Berurah)

- If you searched a room **before** the night of the 14th, and you are **certain no chametz has entered since**, you do **not** need to re-check that room.
- This is a crucial practical point: bedikat chametz on the night of the 14th only applies to **places not yet properly searched**.
- If the entire house has been searched in advance except the kitchen (where chametz is still being used), **me'ikar hadin you only need to do bedikat chametz in the kitchen**.

The One Exception: Young Children

- If there are young children in the house who were not under constant watch, you **cannot rely on prior searches**.
- You must re-check anywhere the child could have reached — even rooms previously cleaned and declared chametz-free.
- A couple without children (or with only older, reliable children) who searched the whole house in advance will have a very quick bedikat chametz.

Checking During the Day

- If you missed the night of the 14th, you must check the next morning — **before eating breakfast**, as soon as possible after Shacharit.
- Use a candle even during the day (not just sunlight), to access nooks and crannies.
- **Exception:** A room with abundant natural light (large windows, skylight) — you can rely on sunlight during the day.
- **A bracha is still said** when checking during the day.

Se'if 2 — Type of Candle

Shulchan Aruch: אין בודקין לאור האבוקה אלא לאור הנר — Do not search with a large flame (avukah/torch), only a single candle.

Reasons

- A large flame is dangerous — you won't check properly for fear of burning the house.
- Too big to insert into nooks and crannies.

Specifications

Type	Permitted?
Single wax candle	**Yes** — the ideal
Fatty/greasy candle (tallow, oil)	**No** — will spill; person won't check corners properly
Two-wicked candle (e.g., Havdalah candle)	**No** — considered an avukah
Torch / phone flashlight	**Yes** — the poskim accept this (see below)

Practical Modern Consideration

- Walking around modern homes with carpet, sofas, and wood surfaces with an open flame can be impractical and even dangerous (the very concern the Chachamim had).
- **The Rav's personal practice:** Use a candle to fulfil the concept the Chachamim established, but supplement with a **phone torch** when checking underneath sofas, behind furniture, and in tight spaces where a flame would be dangerous.

Se'if 3 — The Core Principle: Only Check Where Chametz May Have Been Brought

Shulchan Aruch: בודק כל המקומות שיש לחוש שמא הכניסו בהם חמץ — Check any place where there is reason to suspect chametz was brought in.

Certainty Level	Need to Check?
Definite chametz is brought there regularly	**Yes**
Occasional — not regularly, but sometimes	**Yes**
Doubtful — possibly but not certain	**Yes**
Certain no chametz was ever brought there	**No**

Shulchan Aruch: כל חדרי הבית ועליות צריכים בדיקה — All rooms and upper floors need checking, because sometimes a person walks through the house with bread in hand.

Exception: Storehouses, sheds, and storage areas where you would never bring food during a meal — these do **not** need bedikah.

Practical Applications

Area	Need to check?	Reason
Kitchen	**Yes**	Primary chametz area
Dining room	**Yes**	Regular eating
Bedrooms (if you sometimes eat there)	**Yes**	Walking through with bread
Bedrooms (strict no-food policy, no kids)	**No**	Chametz never enters
Bathroom / toilet	**No** (unless young children)	No one eats there
Garden shed	**No**	Never bring food there
Top of high bedroom cupboards	**No**	Food would never reach there
Loft/attic (slanted, storage only)	**No**	You wouldn't eat there
Loft/attic (flat, walkable)	**Yes** (unless no-food policy)	Could bring food there

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Se'if 4 — Protruding Beams and High/Low Places

Shulchan Aruch: Protruding beams from walls that are not too high and not too low need checking. But:

- **Very high** (beyond arm's reach) — **no bedikah needed** — chametz wouldn't reach there.
- **Very low** (less than 3 tefachim / ~24 cm from ground) — **no bedikah needed** — you wouldn't store chametz there.
- **Exception (Mishnah Berurah):** With young children, the low areas **do** need checking — children place chametz everywhere.

Se'if 5 — Slanted Roofs / Loft Spaces

Shulchan Aruch: A slanted attic roof or tower where there is no usable space — **does not need bedikah**. You would never spend time eating there; you only enter briefly to retrieve items.

- **If the loft is flat and walkable** — it would need bedikah (unless there's a no-food policy).

Se'if 6 — Animal Areas and Courtyards

Shulchan Aruch:

- **Cattle shed:** No bedikah needed — even if chametz was given to animals, the animals would have eaten it.
- **Chicken coop:** No bedikah needed — same reason.
- **Middle of the courtyard / garden:** No bedikah needed — birds and ravens would eat any chametz.

The Garden — Important Qualification

- The above applies only to **safek chametz** (doubt whether chametz is there from earlier in the year). We assume birds/animals ate it.
- **Vadai chametz** (definite chametz — e.g., you ate in the garden on the night of bedikat chametz itself) — **you must check** that area of the garden.
- **Chametz in a public domain** (reshut harabim): Even if you definitely left chametz there on the night of bedikah — **no need to check**, because in a public space with many people and birds, we assume it has been consumed.

Se'if 7 — Hole Between Two Jewish Neighbours

Shulchan Aruch: If there is a hole connecting two Jewish properties:

- Each person checks as far as their hand can reach into the hole.
- If there's a space in the middle neither can reach — just do **bitul in your heart**; that's sufficient.

Hole Between a Jew and a Non-Jew

Shulchan Aruch: No bedikah needed at all in this hole.

Reason (Gemara): שמא יאמר כשפים הוא עושה לי — The non-Jew may think the Jew is performing sorcery (putting a candle through a hole late at night) and may harm him.

The Principle of Shluchei Mitzvah Einan Nizokin

- **Question:** Aren't those engaged in a mitzvah protected from harm?
- **Answer:** שאני דשכיח היזיקא — When danger is **common**, we do not rely on this principle.
- The Gemara means that **persecution of Jews by non-Jews was common**, and the slightest provocation could trigger violence. Therefore, the Chachamim exempted this entirely.
- **If you know for certain** there is chametz there: Check during the daytime the next morning (less suspicious) and remove it.

Practical Lesson

- Do not perform bedikat chametz in a way that arouses suspicion or creates danger.
- Be sensitive to non-Jewish neighbours and surroundings.
- Use common sense regarding health and safety.

Se'if 8 — A Collapsed Wall with Chametz Underneath

Shulchan Aruch: A wall where chametz was stored in its holes has collapsed into a heap of stones:

Height of Heap	Known Chametz?	Need to Check?
≥ 3 tefachim (~24 cm)	Yes or No	**No** — just do bitul. A dog cannot access it at that height.
< 3 tefachim	**Safek** (unsure if chametz is there)	**No** — due to danger of scorpions/creatures in the heap
< 3 tefachim	**Vadai** (definitely chametz there)	**Yes** — must search with a spade, but only for chametz (not personal items)

Why Not Check the Low Heap (Safek)?

- A dog can smell and access chametz up to 3 tefachim — so there's a concern it would drag chametz out during Pesach.
- But dangerous creatures (scorpions) inhabit these heaps.
- **Question:** You're doing a mitzvah — shluchei mitzvah einan nizokin should protect you!
- **Answer:** The Chachamim were concerned that **after finishing searching for chametz**, you'll continue rummaging for **personal belongings** (lost items). At that point, you're no longer engaged in the mitzvah, and you lose the protection.

Important Gemara Principle — Doing a Mitzvah with Personal Benefit

The Gemara distinguishes:

Scenario	Protected by shluchei mitzvah?
While searching for chametz, you also look for personal items	**Yes** — like giving charity while hoping for personal reward (האומר סלע זו לצדקה בשביל שיחיה בני — הרי זה צדיק גמור)
After finishing the chametz search, you continue looking for personal items	**No** — the mitzvah is over; you're now acting for yourself only

- Therefore, the Chachamim said: Don't check at all (in the safek case), because inevitably you'll continue searching for personal things after the mitzvah ends.

Se'if 9 — Wine Cellar with Stacked Barrels

Shulchan Aruch: A wine cellar with rows of barrels/bottles stacked high and wide:

- Only need to check the **top two rows** (the highest and the one beneath it).
- Only need to check what is **directly in front of you** when entering — not the full width/depth of the cellar.
- Reason: That's where you would realistically reach and where chametz could have been left when entering with food.
- This only applies if you sometimes enter the cellar with food; if you have a policy of no food in the wine cellar — no bedikah needed at all.

Se'if 10 — Synagogues and Study Halls

Shulchan Aruch: בתי כנסיות ובתי מדרשות צריכים בדיקה — Synagogues and study halls need bedikat chametz.

- **Question:** It's forbidden to eat in a synagogue — why check?
- **Answer:** מפני שהתינוקות מכניסים בהם חמץ — Because **children bring chametz** into these places (sweets, snacks given to children during services).
- A beit midrash (study hall) — there are circumstances where eating is permitted there, so checking is more straightforward.
- **Mishnah Berurah:** People don't always do this — it is the **rabbi's and gabbai's responsibility** to ensure the synagogue is checked.

Se'if 11 — Cleaning vs. Searching

Shulchan Aruch: If a person **cleaned** his room on the 13th of Nisan, even with intent to clean for Pesach, and was careful not to bring chametz back in — **he still must do bedikat chametz on the night of the 14th**.

- **Cleaning ≠ Searching.** A sweep or tidy-up is not bedikat chametz.
- Bedikat chametz requires **actively searching** in nooks, crannies, holes, behind and under furniture — not just making the house look neat.
- **Practical implication:** When cleaning before Pesach, make sure you are also **searching** — checking behind drawers, in corners, under beds. Otherwise, you'll have to redo everything on the night of the 14th.

Rama — Preparation and Pockets

Rama:

1. **Prepare before searching:** כל אדם צריך לכבד חדריו קודם הבדיקה — Clean and organise rooms before the bedikah night so the search is easier and more efficient.
2. **Check pockets:** הכיסים או בתי יד של בגדים שנותנים בהם לפעמים חמץ צריכים בדיקה — Pockets of clothing where chametz is sometimes placed need to be checked.

- If you **never** put food in pockets — no need to check (not common for adults).
- **Children's pockets** — definitely need checking.
- **Method:** Sufficient to shake out the pockets thoroughly.

Summary of Key Practical Points

Siman	Key Takeaways
432:1	Bracha is "al biur chametz" — covers both the search (tonight) and destruction (tomorrow). Sephardim: biur = destroy by any means. No new bracha in the morning unless you forgot entirely at night.
432:1 (speech)	No speech between bracha and beginning search. After beginning — permitted me'ikar hadin but best to stay focused. Bedikah-related speech always fine.
432:2	One bracha covers multiple properties. Family can split up after hearing one bracha. Best to gather everyone before the bracha if planning to split.
432 (who can check)	Women and children (age of chinuch) can check — it's de-rabbanan. Better if over bar/bat mitzvah.
432 (Rama — pieces)	Minhag to leave pieces; Arizal says 10. Me'ikar hadin unnecessary. Must be less than a kezayit. Write down locations.
433:1	Check by candlelight. Prior searches valid if no chametz entered since. Exception: young children.
433:2	Single wax candle — not large flames, fatty candles, or two-wicked. Supplement with torch for safety.
433:3	Only check where chametz may have been brought. Strict no-food policy = no bedikah needed in that area.
433:4–5	Very high/low places and slanted lofts — no bedikah (unless children access them).
433:6	Animal areas and gardens — no bedikah for safek; vadai chametz from night of bedikah must be checked. Public domain — no need even for vadai.
433:7	Hole between Jewish neighbours — each checks as far as they can reach. Between Jew and non-Jew — no bedikah (danger).
433:8	Collapsed wall — depends on height and certainty. Shluchei mitzvah protection doesn't apply when you'll also search for personal items.
433:9	Wine cellar — only top two rows and what's in front of you.
433:10	Synagogues need bedikah because of children. Rabbi/gabbai's responsibility.
433:11	Cleaning ≠ searching. Must actively search, not just tidy. Check pockets of clothing. Prepare rooms before bedikah night.

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